Claims Payment Policy

Subject: Modifier 62

Application: Medicare Advantage and Commercial Products

Effective date: Commercial: 06/2010
Medicare: 01/2008

Policy number: CP2010100

Revision date: 02/2020

Related policies: N/A

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Overview

In some situations, it is necessary for two surgeons to work together, each as a primary surgeon, on the same patient during the same operative session due to factors such as the complexity of the procedure or the condition of the patient. This can include surgeries when two surgeons of different specialties are required for a specific procedure. This can also include surgeries in which two surgeons perform elements of the procedure simultaneously such as during bilateral knee replacement or a heart transplant. In such circumstances, the physicians are considered co-surgeons, not assistant surgeons.

Note: Surgeons of different specialties performing distinct procedures, even if the procedures use the same incision site, are not considered co-surgeons.

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In addition to the policy, claims payments are subject to other plan requirements for the processing and payment of claims, including, but not limited to, requirements of medical necessity and reasonableness and applicable referral or authorization requirements.

The following policy applies to professional services only.

Humana requires each surgeon acting as a co-surgeon to append *modifier 62* to a procedure code with a *Medicare Physician Fee Schedule (MPFS) Relative Value File* co-surgeon indicator 1 or 2.

Co-surgeon Indicator 2

Humana allows the services of co-surgeons for a procedure with an *MPFS Relative Value File* co-surgeon indicator 2, when the surgeons determine it is necessary for more than one surgeon to perform the procedure. In these situations, each surgeon submits a charge with *modifier 62*. The amount allowed for each surgeon's charge is the lower of the following:

- The billed charge amount;
- 62.5 percent of the surgeon's contracted rate; or
- 62.5 percent of the *base maximum amount payable under the member's plan*, for an out-of-network surgeon.

In certain circumstances, additional payment rules may apply. For example, when applicable, multiple surgery reduction is applied after a co-surgeon reduction.

Co-surgeon Indicator 0

Humana does not allow the services of co-surgeons for a procedure with an *MPFS Relative Value File* co-surgeon indicator 0. If a charge for such a service is submitted with *modifier 62* and no surgeon charge has yet been allowed for the procedure, no co-surgeon adjustment will apply. Any charge by another health care provider, processed later, for the same procedure will be denied because the services of co-surgeons are not allowed for the procedure.

Co-surgeon Indicator 1

Humana may allow the services of co-surgeons for a procedure with an *MPFS Relative Value File* co-surgeon indicator 1, if Humana determines it was medically necessary for more than one surgeon to perform the procedure. Medical necessity of the co-surgeon services must be documented in the medical record, and the claim may be subject to records review.

If Humana determines the services of co-surgeons are medically necessary in that situation, then the amount allowed for each surgeon's charge is determined as discussed in the section above regarding procedures with an *MPFS Relative Value File* co-surgeon indicator 2. If Humana determines the services of co-surgeons are not medically necessary in that situation, then co-surgeon charges will be processed as discussed in the section above regarding procedures with an *MPFS Relative Value File* co-surgeon indicator 0.

Definitions of *Italicized* Terms

- ***Base maximum amount payable under the member's plan:*** The maximum amount of reimbursement for a covered expense, determined by the member's plan. Depending on the plan, this may be the maximum allowable fee, the appropriate Medicare fee schedule rate or an amount derived from another payment model. Actual plan reimbursement may be less than this base maximum amount, because of applicable adjustments.
- ***Medicare Physician Fee Schedule (MPFS) Relative Value File:*** A file published by the Centers for Medicare & Medicaid Services that includes, among other information, co-surgeon indicator, relative value units and conversion factors for physician services. This file is commonly referred to as the relative value unit (RVU) table.
- ***Modifier 62:*** "Two surgeons."

References

- Centers for Medicare & Medicaid Services website. Medicare Claims Processing Manual. Chapter 12 – Physicians/Nonphysician Practitioners. Sections 20.4, 40, 40.6, 40.8 and 40.9. http://www.cms.gov.
- Centers for Medicare & Medicaid Services website. Medicare Claims Processing Manual. Chapter 23 – Fee Schedule Administration and Coding Requirements. Section 50.6 and Addendum. http://www.cms.gov.
- Centers for Medicare & Medicaid Services website. Medicare Physician Fee Schedule (MPFS) Relative Value File. http://www.cms.gov.
- American Medical Association's Current Procedural Terminology (CPT®) and associated publications and services.

General Humana Resources

- Availity – Providers can register for access to information on a variety of topics such as eligibility, benefits, referrals, authorizations, claims and electronic remittances.
- Claims processing edit notifications – Alerts of upcoming claims payment changes are posted on the first Friday of each month.
- Claims resources – Providers can find information on referrals, authorizations, electronic claim submissions and more.
- Education and news – This page can help you find clinical guidelines, educational tools, Medicare and Medicaid resources, our provider magazine and other resources to help you do business with us.
- Making it easier – This page contains an educational series for providers and healthcare professionals.
- Medical and pharmacy coverage policies – Humana publishes determinations of coverage of medical procedures, devices and medications for the treatment of various conditions. There may be variances in coverage among plans.

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